

Amendment No. 3 to HB2075

Hicks G
Signature of Sponsor

AMEND Senate Bill No. 2149

House Bill No. 2075*

by deleting all language after the caption and substituting:

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Title 53, is amended by adding the following as a new chapter:

53-16-101. Short title.

This chapter is known and may be cited as the "HOPE Treatment Act."

53-16-102. Legislative intent.

It is the intent of the general assembly to encourage Tennessee-based research institutions to participate in federally authorized ibogaine clinical trials and multistate research collaborations addressing opioid use disorder, post-traumatic stress disorder, traumatic brain injury, and other serious conditions.

53-16-103. Chapter definitions.

As used in this chapter:

(1) "Healthcare provider" means an individual who is licensed, registered, certified, authorized, or permitted by the laws of this state to administer health care in the ordinary course of business or practice of a profession;

(2) "Ibogaine" means ibogaine and ibogaine-based therapeutics, including analogs;

(3) "Researcher" means an individual who conducts research or research-related activities as part of a federally authorized clinical trial; and

(4) "Research institution" means a hospital, academic medical center, or institution of higher education with clinical research capacity located in this state.

53-16-104. Authorization for research participation.

(a) Notwithstanding another law to the contrary, a research institution may participate in one (1) or more clinical trials involving ibogaine, whether alone or in participation with a multistate research consortium, as long as all clinical trial activity is conducted in compliance with applicable state and federal law.

(b) Participation in a clinical trial under this section must include compliance with a valid United States food and drug administration investigational new drug (IND) authorization, when such authorization is required by federal law.

(c) A research institution may receive and administer federal, private, or philanthropic funding for purposes of conducting research authorized under this section.

53-16-105. Scope of authorized activity.

This chapter does not authorize the administration of ibogaine except in the context of a clinical trial conducted pursuant to applicable state and federal law.

53-16-106. Medical direction and safety.

(a) Ibogaine may only be administered in this state:

(1) As part of a clinical trial conducted at a hospital or qualified research facility; and

(2) Under the medical direction of a physician licensed in this state.

(b) A research institution that is conducting or participating in a federally authorized clinical trial for ibogaine shall implement appropriate patient screening and safety protocols consistent with federal law, rule, and guidance.

53-16-107. Liability protection.

Notwithstanding chapter 11 of this title, the Tennessee Drug Control Act of 1989, compiled in title 39, chapter 17, part 4, or another law to the contrary, a healthcare provider, researcher, patient, or research institution participating in a clinical trial

involving ibogaine in compliance with this chapter and applicable federal law is not subject to criminal liability under the controlled substance laws of this state solely for conduct that occurs as part of such clinical trial, if such conduct is authorized by federal law.

SECTION 2. If any provision of this act or its application to any person or circumstance is held invalid, then the invalidity does not affect other provisions or applications of the act that can be given effect without the invalid provision or application, and to that end, the provisions of this act are severable.

SECTION 3. The headings in this act are for reference purposes only and do not constitute a part of the law enacted by this act. However, the Tennessee Code Commission is requested to include the headings in any compilation or publication containing this act.

SECTION 4. This act takes effect upon becoming a law, the public welfare requiring it.